

Court No. - 36

Case :- WRIT - C No. - 6013 of 2015

Petitioner :- Krishna Tyagi & 18 Others

Respondent :- U.P.P.C.L. & 2 Others

Counsel for Petitioner :- Sudhanshu Pratap Singh

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Dinesh Maheshwari,J.

Hon'ble Vivek Kumar Birla,J.

Though the learned counsel for the petitioners has referred to certain orders passed by this Court in other writ petitions, including Writ-C No. 11961 of 2012 and Writ C No 7651 of 2014; and suggested that the matter involved herein is essentially similar and identical to the said petitions. However, the learned counsel for the respondents has pointed out that other similar nature petition bearing No. 6793 of 2015 has been considered and dismissed by this Court, relegating the similarly circumstanced petitioners to the alternative statutory remedy under the Electricity Supply Code, 2005. The order dated 05.02.2015 passed in Writ C No. 6793 of 2015 reads as under:-

"Heard learned counsel for the petitioner and learned Standing Counsel for the State-respondents.

If the petitioner has any objection with regard to the bill raised by the Dakshinanchal Vidyut Vitran Nigam Ltd., Agra, proper remedy available to the petitioner is to challenge the same in accordance with clause-6.5 of the Electricity Supply Code,2005.

The present writ petition is accordingly dismissed on the ground of availability of statutory alternative remedy as aforesaid."

For the basic questions of fact being directly involved in the matter and in overall circumstances, we are clearly of the view that following the decision in Writ-C No. 6793 of 2015,

the present petitioners be also relegated to the statutory alternative remedy.

Accordingly, this petition also stands dismissed while leaving it open for the petitioners to raise the objections in relation to the bills in question in accordance with law.

It goes without saying that upon the petitioners raising objection in relation to the bills in question, the authorities would be expected to deal with the same, of course, in accordance with law.

Order Date :- 12.2.2015

LA/-

(Vivek Kumar Birla, J.) (Dinesh Maheshwari, J.)